

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X
VLADIMIR DAVID,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER RICHARD
ALTAMIRANO, Individually and in His Official Capacity;
and JOHN DOE, Individually and in His Official Capacity
(member of the New York City Police Department whose
name is presently unknown to Plaintiff),

-----X
Defendants.

COMPLAINT

CV 12 - 5257

Jury Trial Demanded
ECF Case

GLASSER, J.

MANN, M.J.

The plaintiff, complaining of the defendants, by his attorney, H. Benjamin Perez, Esq. of
Perez and Cedeno, P.C., respectfully shows to the Court and alleges:

JURISDICTION AND VENUE

1. Jurisdiction is founded upon the existence of a Federal Question.
2. This is an action to redress the deprivation under color of statute, ordinance, regulation, custom, or usage of rights, privileges, and immunities secured to plaintiff by the Fourth and Fourteenth Amendments to the Constitution of the United States pursuant to 42 U.S.C. § 1983 as well as pursuant to the laws of the State of New York.
3. Jurisdiction is founded upon 28 U.S.C. Sections 1331, 1343(3 & 4).
4. Venue is appropriate pursuant to U.S.C. section 1391(b)(1).
5. That this Court has jurisdiction to hear plaintiff's state claims pursuant to 28 U.S.C. Section 1367.

NATURE OF ACTION

6. Plaintiff brings this action for compensatory damages, punitive damages, an attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. §1988 for violation of his civil rights under 42 U.S.C. § 1983 and the Fourth and Fourteenth Amendments of the Constitution of the United States. Plaintiff also asserts supplemental claims under New York law.

JURY DEMAND

7. Plaintiff respectfully demands trial by jury of all issues properly triable thereby pursuant to Fed. R. Civ. P. 38(b).

PARTIES

8. That the plaintiff, VLADIMIR DAVID, is a 21 year-old resident of the County of Queens in the City of New York and State of New York, and he is an African-American male.
9. Upon information and belief, that at all times hereinafter mentioned, the defendant, CITY OF NEW YORK ("NYC"), was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York. NYC maintains and operates the New York City Police Department ("NYPD"), which acts as its agent in the area of law enforcement and for which it is ultimately responsible. NYC assumes the risk incidental to the maintenance of a police force and the employment of police officers, as said risks attach to the public consumers of the services provided by the NYPD.
10. Defendant POLICE OFFICER RICHARD ALTAMIRANO (Shield # 939866) is, and was at all relevant times herein, a duly appointed agent, employee, officer, and servant of the NYPD acting for, upon, and in furtherance of the business of his employer and within the scope of his employment. Defendant Altamirano is being sued in his individual and official capacities.

11. All John Doe defendants are, and were at all relevant times herein, duly appointed agents, employees, officers, and servants of the NYPD. The Doe defendant is being sued in his individual and official capacities.
12. The NYPD, is a local government agency, duly formed and operating under and by virtue of the Laws and Constitution of the State of New York and the commissioner of the NYPD is responsible for the policies, practices and customs of the NYPD as well as the hiring, screening, training, supervising, controlling and disciplining of its police officers and civilian employees and is the final decision maker for that agency.
13. At all relevant times herein, the individual defendants acted jointly and in concert with each other. Each individual defendant had the duty and the opportunity to protect plaintiff from the unlawful actions of the other individual defendants but each individual defendant failed and refused to perform such duty, thereby proximately causing plaintiff's injuries.
14. Each and all of the acts of the defendants alleged herein were done by the defendants, acting as state actor acting under the color of law.

STATEMENT OF FACTS

15. On Saturday, September 3, 2011, at approximately 2:00 P.M., the plaintiff was near 51-60 Marathon Parkway, Queens County, New York, watching several friends play handball at a handball court inside a public park.
16. At approximately 2:30 P.M., Police Officer Richard Altamirano and his unknown partner, (hereinafter Police Officer John Doe) approached the plaintiff and his friends, and without just cause or any reasonable suspicion that a crime was being committed, began searching through plaintiff's and his friends' belongings that were sitting up

against the fence next to the court. Plaintiff offered no resistance of any kind and at no time did plaintiff behave unlawfully in any way.

17. Officer Altamirano then began questioning the plaintiff and his friends regarding whether or not any of them were in possession of any illegal drugs or other illegal items.
18. The plaintiff allowed the officers to conduct their unwarranted search without any resistance, even after he and the others present informed the officers that they were not in possession of any illegal items.
19. Upon finding nothing, Officer Altamirano and his partner, defendant John Doe, picked up a Snapple bottle that one of the plaintiff's friends had been drinking and threw it in the garbage can.
20. The officers then got back into their patrol vehicle, circled the park, and proceeded to reposition their vehicle perpendicular to where the plaintiff and his friends continued their handball game.
21. Several minutes later, and for no justifiable reason, the defendant officers drove their police vehicle straight to the handball court.
22. Immediately upon exiting his patrol vehicle, Officer Altamirano told one of plaintiff's friend's that he was under arrest for disorderly conduct, supposedly for yelling and screaming in the park in the middle of the afternoon. Officer Altamirano then told the plaintiff that he was also under arrest, supposedly for obstruction of governmental administration. Plaintiff offered no resistance, and neither did any of plaintiff's friends who were present during the incident. No weapons, drugs, or contraband of any kind were found on plaintiff. When plaintiff asked Officer Altamirano why he was being arrested Officer Altamirano stated "I took you because your friend is being an asshole."

23. Plaintiff was taken to the local precinct for processing and was charged with the crimes of Resisting Arrest under PL §205.30, and Obstruction of Governmental Administration under PL §195.05.
24. According to the complaint sworn to by Police Officer Richard Altamirano, plaintiff was attempted to prevent the officer from handcuffing his friend, Kristopher Lim, and refused obey several orders to step away and let the officer make his arrest. Defendant Officer Altamirano further alleged that plaintiff resisted arrest by flailing his arms to avoid being handcuffed. The sworn allegations by defendant Officer Altamirano were completely false.
25. Eventually, on Sunday, September 4, 2011, plaintiff was arraigned after spending over 24 hours in jail. His case was immediately adjourned in contemplation of dismissal. On or about March 4, 2012, the criminal charges against plaintiff were dismissed in their entirety.
26. As a result of the foregoing, plaintiff sustained, *inter alia*, mental injuries, emotional distress, embarrassment, humiliation, deprivation of his liberty, and violation of his constitutional rights.
27. On or about December 1, 2011, a notice of claim was served on the New York City Police Department and the Comptroller of the City of New York on behalf of plaintiff, and that as of this date plaintiff's demand for payment has not yet been addressed by the defendants.
28. That more than thirty days have elapsed since the service of the aforementioned notices of claims for the plaintiff and that adjustment or payment thereof has been neglected or refused.

29. That the state claim in this cause of action is commenced within one year and ninety days of when this cause of action arose as to plaintiff and that the federal claims are brought in a timely manner within three years of the date they accrued.

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF PLAINTIFF
VIOLATION OF THE PLAINTIFF'S RIGHTS PURSUANT TO
42 U.S.C. § 1983 AND THE FOURTH AMENDMENT
FALSE ARREST

30. Plaintiff repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.
31. That the plaintiff's rights have been violated under the Fourth Amendment of the United States Constitution made applicable to the states via the Fourteenth Amendment pursuant to 42 U.S.C. § 1983, in that plaintiff was subject to being falsely arrested by the defendants.
32. That the defendant confined the plaintiff, in that plaintiff was not free to leave, defendants intended to confine plaintiff, plaintiff was conscious of confinement, plaintiff did not consent to confinement and confinement was not otherwise privileged.
33. As a direct result of defendants' actions, plaintiff was deprived of rights, privileges and immunities under the Fourth and Fourteenth Amendments of the United States Constitution being more particularly plaintiff's right to be free from arrest without probable cause.
34. That the said false arrest was caused by the defendants, without any legal justification, without authority of the law and without any reasonable cause or belief that the plaintiff was in fact guilty of any crime.

35. That the defendants who knew of the false arrest and allowed the illegal detention of the plaintiff to commence and continue, are liable to the plaintiff via their failure to act pursuant to their affirmative duty to intervene.
36. That by reason of the false arrest, the plaintiff was subjected to great indignities, humiliation, anxiety, and he was subjected to numerous other harms.
37. That by reason of the aforesaid, the plaintiff has been damaged in a sum not to exceed TWO MILLION (\$2,000,000.00) DOLLARS, and he is entitled to an award of punitive damages, and that an award of attorneys' fees is appropriate pursuant to 42 U.S.C. §1988.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF
VIOLATION OF THE PLAINTIFFS' RIGHTS PURSUANT TO
42 U.S.C. § 1983 AND THE FOURTH AMENDMENT
MALICIOUS PROSECUTION

38. Plaintiff repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.
39. That the plaintiff's rights have been violated under the Fourth Amendment of the United States Constitution pursuant to 42 U.S.C. § 1983, in that the plaintiff was maliciously prosecuted by the defendants.
40. That the said malicious prosecution was initiated by the defendants, their agents, servants and employees, without any legal justification and without probable cause in that the defendants caused the commencement and continuation of criminal proceedings against the plaintiff, the proceedings ultimately terminated in favor of the plaintiff via a dismissal of all the false charges and in that the action was commenced and continued intentionally and with malice and deliberate indifference to plaintiff's rights.

41. That by reason of the unlawful malicious prosecution, the plaintiff was subjected to pecuniary harms, great indignities, humiliation, anxiety, and he was subjected to numerous other harms.
42. That defendants Unidentified New York City Police Officers who are supervisors within the defendant NYC's Police Department, who knew of the malicious prosecution and who continued to allow and/or participate in the prosecution of the plaintiff and who either directly participated in the violation of plaintiff's rights or who after learning of the violation failed to remedy the wrong are liable to the plaintiff for the violation of his rights pursuant to the Fourth Amendment.
43. That by reason of the aforesaid, the plaintiff has been damaged in a sum not to exceed TWO MILLION (\$2,000,000.00) DOLLARS, and he is entitled to an award of punitive damages, and that an award of attorneys' fees is appropriate pursuant to 42 U.S.C. §1988.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF
VIOLATION OF THE PLAINTIFF'S RIGHTS PURSUANT TO
THE LAW OF THE STATE OF NEW YORK VIA A
MALICIOUS PROSECUTION

44. Plaintiff repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.
45. That plaintiff's rights have been violated, pursuant to the law of the State of New York via a malicious prosecution by the defendants.
46. That the defendant NYC is vicariously liable to the plaintiff for the individual defendants' common law torts via the principle of *respondeat superior*.
47. That New York CPLR § 1601 does not apply pursuant to the exception provided by CPLR § 1602(1)(b).

48. That the said malicious prosecution was initiated by the defendants, their agents, servants and employees, without any legal justification and without probable cause in that the defendants caused the commencement and continuation of criminal proceedings against the plaintiff, the proceedings ultimately terminated in favor of the plaintiff via a dismissal and in that the action was commenced and continued intentionally, with malice and with deliberate indifference to plaintiff's rights.
49. That by reason of the unlawful malicious prosecution, the plaintiff was subjected to pecuniary harms, great indignities, humiliation, anxiety, was subjected to numerous other harms.
50. That by reason of the aforesaid, the plaintiff has been damaged in a sum not to exceed TWO MILLION (\$2,000,000.00) DOLLARS.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF
VIOALTION OF THE PLAINTIFF'S RIGHTS PURSUANT TO
42 U.S.C. § 1983 AND THE FOURTH AMENDMENT
VIA EXCESSIVE AND UNREASONABLE FORCE
AND UNREASONABLE TERMS OF HIS CONFINEMENT

51. Plaintiff repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.
52. That the plaintiff's rights have been violated under the Fourth Amendment of the United States Constitution made applicable to the states via the Fourteenth Amendment pursuant to 42 U.S.C. § 1983, in that plaintiff was unlawfully subjected to excessive and unreasonable force by the defendants, as well as to unreasonable terms and conditions of his confinement by the defendants.

53. That the said behavior was effected by the defendants without authority of law and without any reasonable necessity to use any force and that the force employed was used without legal justification, without plaintiff's consent, with malice and with intent to inflict pain and suffering.
54. As a direct result of defendants' actions, plaintiff was deprived of rights, privileges and immunities under the Fourth Amendment of the United States constitution being more particularly plaintiff's right to be free from the use of excessive and unreasonable force and unreasonable terms and conditions of his confinement.
55. That by reason of the violations of his Constitutional rights the plaintiff was harmed physically as he suffered marks on his wrists and he was harmed emotionally suffering humiliation, embarrassment, anxiety, and he was subjected to various emotional harms, and that he was otherwise harmed.
56. That by reason of the aforesaid, the plaintiff has been damaged in a sum not to exceed TWO MILLION (\$2,000,000.00) DOLLARS, and he is entitled to an award of punitive damages, and that an award of attorneys' fees is appropriate pursuant to 42 U.S.C. §1988.

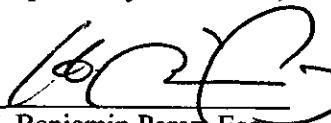
WHEREFORE, plaintiff demands the following relief jointly and severably against all the defendants:

- a. Compensatory damages in a sum not to exceed TWO MILLION (\$2,000,000.00) DOLLARS;
- b. Punitive damages in a sum not to exceed TWO MILLION (\$2,000,000.00) DOLLARS
- c. Reasonable attorneys' fees and costs of this litigation; and

d. Such other relief as this Court deems just and proper.

DATED: NEW YORK, NEW YORK
September 22, 2012

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'H. Benjamin Perez', is written over a horizontal line.

H. Benjamin Perez, Esq.
PEREZ & CEDENO, P.C.
Attorneys for Plaintiff VLADIMIR DAVID
350 Broadway, Suite 400
New York, NY 10013
Tel.: (212) 226-8426
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hbperez@perezandcedeno.com

JS 44 (Rev. 09/11)

CIVIL COVER SHEET

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. (SEE INSTRUCTIONS ON NEXT PAGE OF THIS FORM.)

I. (a) PLAINTIFFS
VLADIMIR DAVID

SUMMONS ISSUE

DEFENDANTS

CITY OF NEW YORK, POLICE OFFICER RICHARD ALTAMIRANO,
and POLICE OFFICER JOHN DOE (member of the New York City
Police Department whose name is presently unknown to Plaintiff)
County of Residence of First Listed Defendant New York

(IN U.S. PLAINTIFF CASES ONLY)
NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF
THE TRACT OF LAND INVOLVED.

Attorneys (If Known)
Corporation Counsel of NYC
100 Church Street
New York, NY 10007

(b) County of Residence of First Listed Plaintiff Queens
(EXCEPT IN U.S. PLAINTIFF CASES)

CV 12-5257

(c) Attorneys (Firm Name, Address, and Telephone Number)
H. Benjamin Perez, Esq.
Perez & Cedenio, P.C.
350 Broadway, Suite 400, New York, NY 10013, (212) 226-8426

II. BASIS OF JURISDICTION (Place an "X" in One Box Only)

- ☐ 1 U.S. Government Plaintiff
☐ 2 U.S. Government Defendant
☒ 3 Federal Question
(U.S. Government Not a Party)
☐ 4 Diversity
(Indicate Citizenship of Parties in Item III)

III. CITIZENSHIP OF PRINCIPAL PARTIES (Place an "X" in One Box for Plaintiff
and One Box for Defendant)

- | | PTF | DEF | | PTF | DEF |
|---|----------------------------|----------------------------|---|---------------------------------------|----------------------------|
| Citizen of This State | ☐ 1 | ☐ 1 | Incorporated or Principal Place of Business In This State | ☒ 4 | ☐ 4 |
| Citizen of Another State | ☐ 2 | ☐ 2 | Incorporated and Principal Place of Business In Another State | ☐ 5 | ☐ 5 |
| Citizen or Subject of a Foreign Country | ☐ 3 | ☐ 3 | Foreign Nation | ☐ 6 | ☐ 6 |

IV. NATURE OF SUIT (Place an "X" in One Box Only)

CONTRACT	TORTS	FORFEITURE/PENALTY	BANKRUPTCY	OTHER STATUTES	
☐ 110 Insurance ☐ 120 Marine ☐ 130 Miller Act ☐ 140 Negotiable Instrument ☐ 150 Recovery of Overpayment & Enforcement of Judgment ☐ 151 Medicare Act ☐ 152 Recovery of Defaulted Student Loans (Excl. Veterans) ☐ 153 Recovery of Overpayment of Veteran's Benefits ☐ 160 Stockholders' Suits ☐ 190 Other Contract ☐ 195 Contract Product Liability ☐ 196 Franchise	PERSONAL INJURY ☐ 310 Airplane ☐ 315 Airplane Product Liability ☐ 320 Assault, Libel & Slander ☐ 330 Federal Employers' Liability ☐ 340 Marine ☐ 345 Marine Product Liability ☐ 350 Motor Vehicle ☐ 355 Motor Vehicle Product Liability ☐ 360 Other Personal Injury ☐ 362 Personal Injury - Med. Malpractice	☐ 365 Personal Injury - Product Liability ☐ 367 Health Care/Pharmaceutical Personal Injury Product Liability ☐ 368 Asbestos Personal Injury Product Liability PERSONAL PROPERTY ☐ 370 Other Fraud ☐ 371 Truth in Lending ☐ 380 Other Personal Property Damage ☐ 385 Property Damage Product Liability	☐ 625 Drug Related Seizure of Property 21 USC 881 ☐ 690 Other LABOR ☐ 710 Fair Labor Standards Act ☐ 720 Labor/Mgmt. Relations ☐ 740 Railway Labor Act ☐ 751 Family and Medical Leave Act ☐ 790 Other Labor Litigation ☐ 791 Empl. Ret. Inc. Security Act	☐ 422 Appeal 28 USC 158 ☐ 423 Withdrawal 28 USC 157 PROPERTY RIGHTS ☐ 820 Copyrights ☐ 830 Patent ☐ 840 Trademark SOCIAL SECURITY ☐ 861 HIA (1395ff) ☐ 862 Black Lung (923) ☐ 863 DIWC/DIWW (405(g)) ☐ 864 SSID Title XVI ☐ 865 RSI (405(g)) FEDERAL TAX SUITS ☐ 870 Taxes (U.S. Plaintiff or Defendant) ☐ 871 IRS—Third Party 26 USC 7609	☐ 375 False Claims Act ☐ 400 State Reapportionment ☐ 410 Antitrust ☐ 430 Banks and Banking ☐ 450 Commerce ☐ 460 Deportation ☐ 470 Racketeer Influenced and Corrupt Organizations ☐ 480 Consumer Credit ☐ 490 Cable/Sat TV ☐ 850 Securities/Commodities/Exchange ☐ 890 Other Statutory Actions ☐ 891 Agricultural Acts ☐ 893 Environmental Matters ☐ 895 Freedom of Information Act ☐ 896 Arbitration ☐ 899 Administrative Procedure Act/Review or Appeal of Agency Decision ☐ 950 Constitutionality of State Statutes
REAL PROPERTY ☐ 210 Land Condemnation ☐ 220 Foreclosure ☐ 230 Rent Lease & Ejectment ☐ 240 Torts to Land ☐ 245 Tort Product Liability ☐ 290 All Other Real Property	CIVIL RIGHTS ☒ 440 Other Civil Rights ☐ 441 Voting ☐ 442 Employment ☐ 443 Housing/Accommodations ☐ 445 Amer. w/Disabilities - Employment ☐ 446 Amer. w/Disabilities - Other ☐ 448 Education	PRISONER PETITIONS ☐ 510 Motions to Vacate Sentence Habeas Corpus: ☐ 530 General ☐ 535 Death Penalty ☐ 540 Mandamus & Other ☐ 550 Civil Rights ☐ 555 Prison Condition ☐ 560 Civil Detainee - Conditions of Confinement			

V. ORIGIN

- (Place an "X" in One Box Only)
☒ 1 Original Proceeding
☐ 2 Removed from State Court
☐ 3 Remanded from Appellate Court
☐ 4 Reinstated or Reopened
☐ 5 Transferred from another district (specify)
☐ 6 Multidistrict Litigation

VI. CAUSE OF ACTION

Cite the U.S. Civil Statute under which you are filing (Do not cite jurisdictional statutes unless diversity):
42 U.S.C. § 1983

Brief description of cause:

An action to redress deprivation of rights, privileges, and immunities secured to the Plaintiff by the Constitution.

VII. REQUESTED IN COMPLAINT:

☐ CHECK IF THIS IS A CLASS ACTION UNDER F.R.C.P. 23

DEMAND \$

CHECK YES only if demanded in complaint:

JURY DEMAND: ☒ Yes ☐ No

VIII. RELATED CASE(S) IF ANY

(See instructions):

JUDGE

DOCKET NUMBER

DATE
10/18/2012

SIGNATURE OF ATTORNEY OF RECORD

[Signature]

FOR OFFICE USE ONLY

RECEIPT #

AMOUNT

APPLYING IFP

JUDGE

MAG. JUDGE

CERTIFICATION OF ARBITRATION ELIGIBILITY

Local Arbitration Rule 83.10 provides that with certain exceptions, actions seeking money damages only in an amount not in excess of \$150,000, exclusive of interest and costs, are eligible for compulsory arbitration. The amount of damages is presumed to be below the threshold amount unless a certification to the contrary is filed.

I, H. Benjamin Perez, Esq., counsel for Plaintiff, do hereby certify that the above captioned civil action is ineligible for compulsory arbitration for the following reason(s):

- ☒ monetary damages sought are in excess of \$150,000, exclusive of interest and costs,
- ☐ the complaint seeks injunctive relief,
- ☐ the matter is otherwise ineligible for the following reason

DISCLOSURE STATEMENT - FEDERAL RULES CIVIL PROCEDURE 7.1

Identify any parent corporation and any publicly held corporation that owns 10% or more of its stocks:

RELATED CASE STATEMENT (Section VIII on the Front of this Form)

Please list all cases that are arguably related pursuant to Division of Business Rule 50.3.1 in Section VIII on the front of this form. Rule 50.3.1 (a) provides that "A civil case is "related" to another civil case for purposes of this guideline when, because of the similarity of facts and legal issues or because the cases arise from the same transactions or events, a substantial saving of judicial resources is likely to result from assigning both cases to the same judge and magistrate judge." Rule 50.3.1 (b) provides that "A civil case shall not be deemed "related" to another civil case merely because the civil case: (A) involves identical legal issues, or (B) involves the same parties." Rule 50.3.1 (c) further provides that "Presumptively, and subject to the power of a judge to determine otherwise pursuant to paragraph (d), civil cases shall not be deemed to be "related" unless both cases are still pending before the court."

NY-E DIVISION OF BUSINESS RULE 50.1(d)(2)

- 1.) Is the civil action being filed in the Eastern District removed from a New York State Court located in Nassau or Suffolk County? No
- 2.) If you answered "no" above:
- a) Did the events or omissions giving rise to the claim or claims, or a substantial part thereof, occur in Nassau or Suffolk County? No
- b) Did the events of omissions giving rise to the claim or claims, or a substantial part thereof, occur in the Eastern District? Yes

If your answer to question 2 (b) is "No," does the defendant (or a majority of the defendants, if there is more than one) reside in Nassau or Suffolk County, or, in an interpleader action, does the claimant (or a majority of the claimants, if there is more than one) reside in Nassau or Suffolk County? _____

(Note: A corporation shall be considered a resident of the County in which it has the most significant contacts).

BAR ADMISSION

I am currently admitted in the Eastern District of New York and currently a member in good standing of the bar of this court.

☒ Yes ☐ No

Are you currently the subject of any disciplinary action (s) in this or any other state or federal court?

☐ Yes (If yes, please explain) ☒ No

I certify the accuracy of all information provided above.

Signature: _____